

TRI DELTA KANNADA SANGHA BYLAWS

ARTICLE I NAME

The name of the corporation shall be Tri Delta Kannada Sangha and shall be abbreviated as TDKS. The business of the corporation shall be conducted as such.

ARTICLE II CORPORATE PURPOSE

Section 1. Nonprofit Purpose

Tri Delta Kannada Sangha (TDKS) is organized exclusively for charitable, and educational purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code, or the corresponding section of any future federal tax code.

Section 2. Specific Purpose

Tri Delta Kannada Sangha (TDKS) is a membership organization established to invite and bring together Kannadigas living in Tri Delta region (Antioch, Brentwood and Oakley) in Contra Costa County of California. It works to preserve and curate State of Karnataka's cultural, heritage and language facets by keeping it active and dynamic through various activities and do fundraising and charitable giving in United States and India.

Kannadigas by definition are persons connected to Karnataka, (a state in southern part of India) by virtue of speaking Kannada as a native language, ancestry, birth/marriage of either children, themselves, parents or their grandparents, ex-residency, or a keen desire to connect with the state of Karnataka.

Tri Delta Kannada Sangha (TDKS) will be involved in charitable giving in the United States, and India through activities such as:

1. Community volunteering, and service projects.
2. Fundraising and donating for different causes in India and the United States.
3. Community based cultural curation, preservation, exhibition and presentations to showcase, entertain and educate the public on many facets of Karnataka that may include its people, language, cuisine, social habits, music, arts, aesthetics, artists, craftsmanship, rituals, history, festivals, geography,

flora and fauna, tourism, religions, economy, industry, education, agriculture, sports, media through:

- a. Social and networking events
- b. Donation to persons and entities in need
- c. Dance, music, cultural festivals, and variety shows
- d. Language classes, theatre, folk arts, debating and educational training
- e. History and heritage classes and shows
- f. Sports and game events
- g. social media campaigns

Tri Delta Kannada Sangha (TDKS) will conduct the above activities accountably, trustfully, honestly, and openly with no affiliation to religious, political or faith-based institutions.

Section 3. Dedication of Assets

The property of this corporation is irrevocably dedicated to charitable purposes and no part of the net income or assets of this corporation shall ever inure to the benefit of any director, officer or member thereof, or to the benefit of any private person. Upon the dissolution or winding up of the corporation, its assets remaining after payment, or provision for payment, of all debts and liabilities of this corporation shall be distributed to a nonprofit fund, foundation or corporation which is organized and operated exclusively for charitable purposes and which has established its tax exempt status under Internal Revenue Code §501(c)(3) or the corresponding provision of any future United States internal revenue law.

ARTICLE III MEMBERSHIP

The membership of the Corporation shall consist of:

- a. Members of the Board of Directors.
- b. Non-voting Members. The board shall have the authority to establish and define non-voting categories of membership.

ARTICLE IV BOARD OF DIRECTORS

Section 1. General Powers

The affairs of the Corporation shall be managed by its Board of Directors. The Board of Directors shall have control of and be responsible for the management of the affairs and property of the Corporation.

Section 2. Number, Tenure, Requirements, and Qualifications

The number of Directors shall be fixed from time-to-time by the Directors but shall consist of no less than three (3) nor more than fifteen (15) including the following officers: The Chairperson, the Secretary, and the Treasurer.

The members of the Board of Directors shall, upon election, immediately enter upon the performance of their duties and shall continue in office until their successors shall be duly elected and qualified. All members of the Board of Directors, as well as all members of the Advisory Board as set forth in Section 12 of this Article may be elected at any board meeting and must be approved by a majority vote of the members present and voting. No vote on new members of the Board of Directors, or Advisory Board, shall be held unless a quorum of the Board of Directors is present as provided in Section 6 of this Article.

Each member of the Board of Directors shall hold office for a two-year term to begin on the first day of January. Directors may serve additional terms in succession.

Newly elected members of the Board of Directors who have not served before shall serve initial one-year terms. At the conclusion of the initial one-year term, members of the Board of Directors may serve an additional one-year term. Their terms shall be staggered so that at the time of each annual meeting, the terms of approximately one-third (1/3) of all members of the Board of Directors shall expire.

Section 3. Regular Meetings

The Board of Directors shall have a minimum of two (2) regular meetings per calendar year. Furthermore, an annual meeting of the Board of Directors shall be held at a time and day in the month of September of each calendar year and at a location designated by the Executive Committee of the Board of Directors. The Board of Directors may provide by resolution the time and place, for the holding of regular meetings of the Board. Notice of these meetings shall be sent to all members of the Board of Directors no less than ten (10) days prior to the meeting date.

Section 4. Special Meetings

Special meetings of the Board of Directors may be called by or at the request of the

Chairperson or any two (2) members of the Board of Directors. The person or persons authorized to call special meetings of the Board of Directors may fix any location, as the place for holding any special meetings of the Board called by them.

Section 5. Notice

Notice of any special meeting of the Board of Directors shall be given at least two (2) days in advance of the meeting by telephone, facsimile or electronic methods or by written notice. Any Director may waive notice of any meeting. The attendance of a Director at any meeting shall constitute a waiver of notice of such meeting, except where a Director attends a meeting for the express purpose of objecting to the transaction of any business because the meeting is not lawfully called or convened. Neither the business to be transacted at, nor the purpose of, any regular meeting of the Board of Directors need be specified in the notice or waiver of notice of such meeting, unless specifically required by law or by these Bylaws.

Section 6. Quorum

The presence, in person of a majority of current members of the Board of Directors shall be necessary at any meeting to constitute a quorum to transact business, but a lesser number shall have power to adjourn to a specified later date without notice. The act of a majority of the members of the Board of Directors present at a meeting at which a quorum is present shall be the act of the Board of Directors, unless the act of a greater number is required by law or by these Bylaws. On the occasion that Directors of the Board are unable to make a decision based on a tied number of votes, the Chairperson or the treasurer in the order of presence shall have the power to swing the vote based on his/her discretion.

Section 7. Forfeiture

Any member of the Board of Directors who fails to fulfill any of his or her requirements as set forth in Section 2 of this Article by September 1st shall automatically forfeit his or her seat on the Board. The Secretary shall notify the Director in writing that his or her seat has been declared vacant, and the Board of Directors may immediately proceed to fill the vacancy. Members of the Board of Directors who are removed for failure to meet any or all of the requirements of Section 2 of this Article are not entitled to vote at the annual meeting.

Section 8. Vacancies

Whenever any vacancy occurs in the Board of Directors it shall be filled without undue delay by a majority vote of the remaining members of the Board of Directors at a regular meeting. Vacancies may be created and filled according to specific methods approved by the Board of Directors.

Section 9. Compensation

The directors may receive such compensation, if any, for their service, and such reimbursement of expenses, as may be determined by resolution of the Board of Directors to be just and reasonable.

Section 10. Informal Action by Directors

Any action required by law to be taken at a meeting of the Directors, or any action which may be taken at a meeting of Directors, may be taken without a meeting if a consent in writing, setting forth the action so taken, shall be signed by two-thirds (2/3) of all of the Directors following notice of the intended action to all members of the Board of Directors.

Section 11. Nomination of Officers

Any person may be nominated to be a director by the method of nomination authorized by the Board or by any other method authorized by law with the following limitation on eligibility; A "group consisting of parents and children living together in a household" defined as a family, can put up only one family member on the Board of Directors or on the Executive/Working Committees across the Corporation. This rule however will not limit other family members from serving as volunteers.

Section 12. Advisory Board

An Advisory Board may be created whose members shall be elected by the members of the Board of Directors annually but who shall have no duties, voting privileges, nor obligations for attendance at regular meetings of the Board. Advisory Board members may attend said meetings at the invitation of a member of the Board of Directors. Members of the Advisory Board shall possess the desire to serve the community and support the work of the Corporation by providing expertise and professional knowledge.

Section 13. Removal

Any member of the Board of Directors or any member of the Advisory Board may be removed with or without cause, at any time, by vote of three-quarters (3/4) of the members of the Board of Directors if in their judgment the best interest of the Corporation would be served thereby. Each member of the Board of Directors must receive written notice of the proposed removal at least ten (10) days in advance of the proposed action. An officer who has been removed as a member of the Board of Directors shall automatically be removed from office.

Section 14. Resignation of Directors

Any Director may resign effective on giving written notice to the Chairperson, the Secretary, or the Board of Directors of the Corporation. If the resignation is effective at a future time, a successor may be elected to take office when the resignation becomes effective. Except on notice to the California Attorney General, no Director may resign if the Corporation would be left without at least three duly elected Directors. During each calendar quarter, the Board of Directors shall review the record of attendance of Directors at meetings of the Board during the prior twelve calendar months. Any Director who shall have failed to attend two consecutive meetings of the Board of Directors during that period, unless excused by a majority vote of the remaining members thereof, shall be deemed to have resigned effective on the date of said review.

Section 15. Committees

The Board, by resolution, may create one or more committees, each consisting of two or more Directors and which may include persons who are not Directors, to serve at the pleasure of the Board. Any such committee shall have such powers as shall have been set forth by the Board by resolution.

ARTICLE V OFFICERS

The officers of the Board of Directors shall be the Chairperson, Secretary and Treasurer. All officers must have the status of active members of the Board.

The Board may also appoint a Vice-Chairperson, Deputy Secretary and Deputy Treasurer, and such additional officers as it deems expedient for the proper conduct of the business of the Corporation, each of whom shall have such authority and perform such duties as the Board of Directors may determine.

Section 1. Chairperson/President

The Chairperson shall preside at all meetings of the Board. The Chairperson shall have the following duties:

- a. Presiding at all meetings of the Executive Committee.
- b. General and active management of the business of the Advisory Board.
- c. General superintendence and direction of all other officers of the Corporation and seeing that their duties are properly performed.
- d. Acting as Ex-officio member of all standing committees.
- e. Carrying all power and duties customarily vested in the office of the Chairperson.

The Chairperson is also called as President of Tri Delta Kannada Sangha (TDKS).

Section 2. Vice-Chairperson

The Vice-Chairperson or Vice-President shall be vested with all the powers and shall perform all the duties of the Chairperson during the absence of the latter. The Vice-Chairperson shall have the duty of chairing perspective committee, and such other duties as may, from time to time, be determined by the Advisory Board.

Section 3. Secretary

The Secretary shall attend all meetings of the Advisory Board and of the Executive Committee, and assisted by a staff member, will act as a clerk thereof. The Secretary shall:

- a. Record all votes and minutes of all proceedings in a book to be kept for that purpose. The Secretary working in concert with the Chairperson shall make the arrangements for all meetings of the Advisory Board, including the annual meeting of the Corporation.
- b. Send notices of all meetings to the members of the Advisory Board and take reservations for the meetings.
- c. The Secretary shall perform all official correspondence from the Advisory Board as may be prescribed by the Advisory Board or the Chairperson.
- d. Act or delegate as the Chief Communications Officer, and be responsible for:
 - Executing the Corporation's communication plans with members, donors, audience and stakeholders.
 - Develop creative and branding content for all internal and external communication across print, web, virtual and broadcast media.
 - Hiring vendors and contractors for creative work where necessary.
 - Managing media outreach, social networking websites, virtual communication and content upgrading.

Section 4. Deputy Secretary

The Deputy Secretary shall be vested with all the powers and shall perform all the duties of Secretary during the absence of the latter. The Deputy Secretary shall attend all meetings of the Advisory Board and of the Executive Committee, and assist by a staff member, will act as a clerk thereof. The Deputy Secretary shall:

- a. Record all votes and minutes of all proceedings in a book to be kept for that purpose. The Deputy Secretary working in concert with the Chairperson shall make the arrangements for all meetings of the Advisory Board, including the annual meeting of the Corporation.
- b. Send notices of all meetings to the members of the Advisory Board and take reservations for the meetings.

- c. The Deputy Secretary shall perform all official correspondence from the Advisory Board as may be prescribed by the Advisory Board or the Chairperson.

Section 5. Treasurer

The Treasures shall:

- a. Approve all expenditures of funds proposed by the Executive and Advisory Board, as well as proposed capital expenditures including equipment and furniture
- b. Present a complete and accurate report of the finances raised by the Executive and Advisory Board at each meeting of the members, or at any other time upon request to the Board.
- c. Have the right of inspection of all funds including budgets and subsequent audit reports.
- d. Assist in direct audits of the funds of the program according to funding source guidelines and generally accepted accounting principles.
- e. Perform such other duties as may be prescribed by the Executive and Advisory Board or the Chairperson under whose supervision he/she shall be.

Section 6. Deputy Treasurer

The Deputy Treasurer shall be vested with all the powers and shall perform all the duties of the Treasurer during the absence of the latter. The Deputy Secretary shall attend all meetings of the Advisory Board and of the Executive Committee.

ARTICLE VI CORPORATE RECORDS & REPORTS

Section 1. Keeping Records

The Corporation shall keep accurate and correct books and records of account and minutes of the proceedings of the Board and committees of the Board. The minutes shall be kept in written form. Other books and records shall be kept in either written form or in any other form capable of being converted into written form.

Section 2. Annual Report

The Board shall cause an annual report to be prepared after the close of the Corporation's fiscal year. The report shall contain all the information required by Section 6321(a) of the Corporations Code and shall be accompanied by any report thereon of independent accountants, or if there is no such report, the certificate of an

authorized officer of the Corporation that such statements were prepared without audit from the books and records of the Corporation. In addition, the annual report shall include any statement required by Section 6322(a) of the Corporations Code. The annual report shall be furnished to all Directors.

ARTICLE VII INDEMNIFICATION

Section 1. Definitions

For the purposes of this Article VII, "agent" means any person who is or was a Director, officer, employee, or other agent of the Corporation; "proceeding" means any threatened, pending, or completed action or proceeding, whether civil, criminal, administrative, or investigative; and "expenses" includes without limitation attorneys' fees and any expenses of establishing a right to indemnification under Section 4 or Section 5(b).

Section 2. Indemnification in Actions by Third Parties

The Corporation shall have the power to indemnify any person who was or is a party or is threatened to be made a party to any proceeding by reason of the fact that the person is or was an agent of the Corporation, against expenses, judgments, fines, settlements, and other amounts actually and reasonably incurred in connection with that proceeding if the person acted in good faith and in a manner the person reasonably believed to be in the best interests of the Corporation and, in the case of a criminal proceeding, had no reasonable cause to believe the conduct of that person was unlawful. The termination of any proceeding by judgment, order, settlement, conviction, or upon a plea of nolo contendere or its equivalent shall not, of itself, create a presumption that the person did not act in good faith and in a manner which the person reasonably believed to be in the best interests of the Corporation or that the person had reasonable cause to believe that the person's conduct was unlawful. Notwithstanding the foregoing, this provision shall not provide indemnification in an action by or in the right of the Corporation to procure a judgment in its favor, an action brought under Section 5233 of the California Nonprofit Public Benefit Corporation Law, or an action brought by the Attorney General or a person granted relator status by the Attorney General for any breach of duty relating to assets held in charitable trust.

Section 3. Indemnification in Actions by or in the Right of the Corporation

The Corporation shall have power to indemnify any person who was or is a party or is threatened to be made a party to any threatened, pending, or completed action by

or in the right of the Corporation, or brought under Section 5233 of the California Nonprofit Public Benefit Corporation Law, or brought by the Attorney General or a person granted relator status by the Attorney General for breach of duty relating to assets held in charitable trust, to procure a judgment in its favor by reason of the fact that the person is or was an agent of the Corporation, against expenses actually and reasonably incurred by that person in connection with the defense or settlement of that action if the person acted in good faith, in a manner such person believed to be in the best interests of the Corporation, and with such care, including reasonable inquiry, as an ordinarily prudent person in a like position would use under similar circumstances. No indemnification shall be made under this Section 3:

- a. In respect of any claim, issue, or matter as to which that person shall have been adjudged to be liable to the Corporation in the performance of that person's duty to the Corporation, unless and only to the extent that the court in which the proceeding is or was pending shall determine upon application that, in view of all the circumstances of the case, the person is fairly and reasonably entitled to indemnity for the expenses which the court shall determine;
- b. Of amounts paid in settling or otherwise disposing of a threatened or pending action, with or without court approval; or
- c. Of expenses incurred in defending a threatened or pending action, which is settled or otherwise disposed of without court approval, unless it is settled with the approval of the Attorney General.

Section 4. Indemnification Against Expenses

To the extent that an agent of the Corporation has been successful on the merits in defense of any proceeding referred to in Section 2 or Section 3 or in defense of any claim, issue, or matter therein, the agent shall be indemnified against expenses actually and reasonably incurred by the agent in connection therewith.

Section 5. Required Determinations

Except as provided in Section 4, any indemnification under this Article VII shall be made by the Corporation only if authorized in the specific case, upon a determination that indemnification of the agent is proper in the circumstances because the agent has met the applicable standard of conduct set forth in Section 2 or Section 3, by:

- a. A majority vote of a quorum consisting of Directors who are not parties to the proceeding; or

- b. The court in which the proceeding is or was pending upon application made by the Corporation or the agent or the attorney or other person rendering services in connection with the defense, whether or not the application by the agent, attorney, or other person is opposed by the Corporation.

Section 6. Advance of Expenses

Expenses incurred in defending any proceeding may be advanced by the Corporation prior to the final disposition of the proceeding upon receipt of an undertaking by or on behalf of the agent to repay that amount unless it shall be determined ultimately that the agent is entitled to be indemnified as authorized in this Article VII.

Section 7. Other Indemnification

No provision made by the Corporation to indemnify its Directors or Officers for the defense of any proceeding, whether contained in the Articles, Bylaws, a resolution of members or Directors, an agreement, or otherwise, shall be valid unless consistent with this Article VII. Nothing contained in this Article VII shall affect any right to indemnification to which persons other than such Directors and officers may be entitled by contract or otherwise.

Section 8. Forms of Indemnification Not Permitted

No indemnification or advance shall be made under this Article VII, except as provided in

Section 4 or Section 5(b), in any circumstances in which it appears:

- a. That it would be inconsistent with a provision of the Articles, these Bylaws, or an agreement in effect at the time of the accrual of the alleged cause of action asserted in the proceeding in which the expenses were incurred or other amounts were paid, which prohibits or otherwise limits indemnification; or
- b. That it would be inconsistent with any condition expressly imposed by a court in approving a settlement.

Section 9. Insurance

The Corporation shall have power to purchase and maintain insurance on behalf of any agent of the Corporation against any liability asserted against or incurred by the agent in that capacity or arising out of the agent's status as such whether or not the Corporation would have the power to indemnify the agent against liability under the provisions of this Article VII, provided, however, that the Corporation shall have no power to purchase and maintain such insurance to indemnify any agent of the

Corporation for a violation of Section 5233 of the California Nonprofit Public Benefit Corporation Law.

ARTICLE VIII OTHER PROVISIONS

Section 1. Designation of Fiscal Year

The fiscal year of the Corporation shall begin on the first day of January and end on the last day of December in each year.

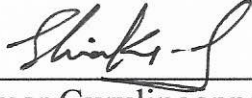
Section 2. Right to Amend Bylaws

These Bylaws may be altered, amended or repealed, and new Bylaws may be adopted, by majority vote of the Board in conformance with Section 5150 of the Corporations Code.

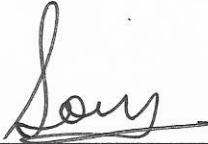
ADOPTION OF BYLAWS

We, the undersigned, are all of the initial directors or incorporators of this corporation, and we consent to, and hereby do, adopt the foregoing Bylaws, consisting of the 12 preceding pages, as the Bylaws of Tri Delta Kannada Sangha (TDKS).

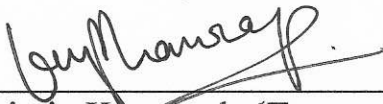
ADOPTED AND APPROVED by the Board of Directors on this 23rd day of August 2025.



Shivakumar Gurulingappa, Chairperson



Sowmya Mukunda, Secretary



Phaniraju Kommarlu, Treasurer